

AROVA DIGITAL ENTERPRISE

arovadigital.com

TERMS OF SERVICE

Version 1.0 · Effective date: [INSERT DATE AFTER LAWYER APPROVAL]

1. Agreement to These Terms

- i. These Terms of Service ("Terms") constitute a legally binding agreement between you and Arova Digital Enterprise ("Arova", "we", "us", "our") governing your use of the Arova Digital Platform ("Platform") and all related services available at arovadigital.com.
- ii. By registering for an account, clicking 'I agree', or using the Platform in any way, you confirm that you have read, understood, and agree to be bound by these Terms and our Privacy Policy. If you do not agree, you must not use the Platform.
- iii. These Terms apply to two categories of users. Merchants are businesses that use the Platform to operate a loyalty program for their customers. Customers are individuals who earn and redeem loyalty points through Arova merchants. Where a provision applies to one category only, this is stated clearly.

2. Description of the Arova Service

Arova provides a digital loyalty and customer relationship management platform. The Platform enables merchants to:

- i. Enroll customers and record their purchase transactions.
- ii. Award loyalty points to customers based on their spending.
- iii. Manage customer profiles, visit history, and point balances.
- iv. Process reward redemptions subject to owner approval controls.
- v. Send automated transactional SMS notifications to customers.
- vi. Access a live dashboard showing business performance and activity.
- vii. Create and send SMS marketing campaigns (paid plans only).
- viii. Manage multiple business branches and team members.

Arova is a technology platform operator. Arova is not a bank, financial institution, payment service provider, or issuer of any monetary instrument. Loyalty points awarded through the Platform are not money, currency, credit, or any form of financial product. They are non-transferable program credits redeemable solely within the specific merchant's loyalty program on the Arova Platform.

3. Merchant Accounts and Obligations

3.1 Eligibility and registration

To register as a merchant on the Platform, you must be at least 18 years of age, be legally authorized to operate a business in the jurisdiction where you operate, and provide accurate, complete, and current information during registration. You agree to keep your account information up to date.

3.2 Account security

You are solely responsible for maintaining the confidentiality of your account login credentials and your redemption approval PIN. You must not share your credentials with any person who is not authorized to act on your behalf. You are responsible for all activity that occurs under your account. You must notify Arova immediately at customerservice@aroadigital.com if you suspect any unauthorized access to your account.

3.3 Merchant obligations

By using the Platform as a merchant, you agree to:

- i. Obtain appropriate, documented consent from each customer before enrolling them in your loyalty program and before sending them any marketing SMS
- ii. Record only genuine, accurately valued customer transactions — you must not fabricate, inflate, alter, or manipulate transaction amounts for any purpose
- iii. Honour all reward redemptions that you approve through the Platform
- iv. Comply with Ghana's Data Protection Act 2012 (Act 843) as the data controller of your customers' personal data
- v. Comply with all applicable NCA guidelines for SMS communications, including maintaining records of customer opt-in consent for marketing messages
- vi. Not using the Platform for any fraudulent, deceptive, misleading, or unlawful purpose
- vii. Ensure that all staff and managers who access the Platform are trained in its proper use and are aware of these Terms
- viii. Notify Arova promptly of any suspected misuse, fraud, or unauthorized access by your staff

3.4 Subscription plans and billing

Arova offers Free, Launch, Growth, and Scale subscription plans. Each plan has defined limits on the number of branches, team users, active customers, and SMS segments. Features vary by plan. Paid plans are billed monthly or annually as selected at registration. Subscription fees are payable in advance. Arova reserves the right to change subscription pricing by giving merchants 30 days' written notice by email. Failure to pay subscription fees within 14 days of the due date will result in suspension of paid features. Account termination for persistent non-payment may follow after 30 days.

3.5 Free plan limitations

The Free plan provides access to core loyalty functionality with defined capacity limits. Arova reserves the right to modify Free plan features and limits at any time with reasonable notice. The Free plan does not include SMS marketing campaigns.

4. Customer Accounts and Rights

4.1 Registration

Customers may register a universal Arova account using their phone number and a password. One account provides access to loyalty point balances across all Arova merchants where the customer is enrolled. Customers must be at least 18 years of age to register independently. Customers must provide accurate registration information and keep it current.

4.2 Nature of loyalty points — important

Loyalty points awarded through the Arova Platform:

- i. Have no monetary value whatsoever and cannot under any circumstances be exchanged for cash, mobile money, bank transfers, or any form of currency.
- ii. Are non-transferable and cannot be given, sold, or assigned to another person.

- iii. Are specific to the merchant that awarded them — points earned at one merchant cannot be used at any other merchant, even if that merchant also uses Arova.
- iv. Are subject to expire if the customer has no qualifying transaction activity for the period set by the merchant in their Points Expiry configuration (typically 12 months).
- v. May be forfeited in full if the merchant terminates their Arova subscription — in such cases, the merchant is responsible for giving customers reasonable advance notice.
- vi. Are awarded and redeemed entirely at the discretion of the merchant within the rules they have configured on the Platform.

4.3 Redemption conditions

Customers may redeem points once they have met the minimum visit threshold and minimum points balance configured by the merchant. Every redemption must be approved by the merchant owner before it is confirmed. Arova processes redemptions in accordance with the merchant's configured settings. The obligation to provide the agreed reward upon redemption rests entirely with the merchant, not with Arova.

4.4 Customer SMS communications

By enrolling in a merchant's loyalty program, customers consent to receive transactional SMS messages from that merchant through Arova. Marketing SMS campaigns are sent only to customers who have separately and explicitly opted in. Customers may opt out of any SMS communication at any time by replying STOP to any message.

5. Prohibited Conduct

You must not use the Arova Platform to:

- i. Record false, inflated, or fabricated transactions for the purpose of generating fraudulent loyalty points.
- ii. Approve or process redemptions that have not been legitimately earned or that circumvent the Platform's approval controls.
- iii. Send marketing SMS to customers who have not given explicit, documented opt-in consent.
- iv. Access, view, or export another merchant's or customer's data without authorization.
- v. Attempt to reverse engineer, copy, decompile, or replicate any part of the Arova Platform or software.
- vi. Use the Platform in connection with any activity that violates Ghanaian law or the laws of any jurisdiction in which you operate.
- vii. Harass, deceive, or mislead customers through the Platform or any communications sent via the Platform.
- viii. Introduce malware, viruses, or any harmful code into the Platform or its infrastructure.

6. Intellectual Property

- i. The Arova Platform, including all software, design, brand elements, logo, trademarks, content, and documentation, is the exclusive intellectual property of Arova Digital Enterprise and is protected by Ghanaian and international intellectual property law.
- ii. You are granted a limited, non-exclusive, non-transferable, revocable license to use the Platform solely for the purposes described in these Terms. Nothing in these Terms transfers any ownership of Arova's intellectual property to you. You must not reproduce, distribute, modify, adapt, publicly display, or create derivative works from any part of the Platform without Arova's express prior written consent.

7. Data Protection and Privacy

Our collection and processing of personal data is governed by our Privacy Policy, which is incorporated into these Terms by reference and available at [arovadigital.com/privacy](https://arova.digital.com/privacy). By using the Platform, you agree to our Privacy Policy.

Merchants acknowledge and accept that:

- i. They are the data controllers for their customers' personal data processed through the Platform.
- ii. Arova acts as the data processor, processing customer data on the merchant's instructions.
- iii. They are responsible for ensuring their use of the Platform and of their customers' data complies with the Data Protection Act 2012 (Act 843).
- iv. The terms of the Merchant Service Agreement (available separately) govern the data processing relationship between Arova and the merchant.

8. Service Availability and Performance

- i. Arova targets 99.9% platform uptime but does not guarantee uninterrupted, error-free service. Planned maintenance will be communicated with advance notice where reasonably practicable. Arova will use commercially reasonable efforts to restore service promptly following any unplanned outage.
- ii. Arova is not liable for any loss, damage, or inconvenience caused by platform downtime, provided Arova has taken reasonable steps to maintain and restore the service.

9. Limitation of Liability

To the maximum extent permitted by the laws of Ghana:

- i. Arova's total aggregate liability to a merchant in respect of any claim or series of related claims arising from these Terms or use of the Platform shall not exceed the total subscription fees paid by that merchant in the 3-month period immediately preceding the event giving rise to the claim
- ii. Arova is not liable for any indirect, special, incidental, consequential, or punitive losses, including loss of revenue, loss of profit, loss of business opportunity, or loss of data, whether arising in contract, or otherwise
- iii. Arova is not liable for the failure of any merchant to honor a customer's legitimately earned reward redemption
- iv. Arova is not liable for SMS delivery failures caused by telecommunications network operators, infrastructure failures, or events outside Arova's reasonable control
- v. Arova is not liable for any breach of these Terms caused by circumstances beyond Arova's reasonable control, including acts of God, government action, internet or network failures, or cyber attacks

Nothing in these Terms excludes or limits Arova's liability for death or personal injury caused by Arova's negligence, fraud or fraudulent misrepresentation, or any other liability that cannot be excluded or limited under Ghanaian law.

10. Indemnity

You agree to indemnify, defend, and hold harmless Arova Digital Enterprise and its officers, employees, and agents from and against any claims, damages, losses, liabilities, costs, and expenses (including reasonable legal fees) arising from:

- (a) your use of the Platform in breach of these Terms;
- (b) your violation of any Ghanaian law or regulation;
- (c) your failure to obtain proper customer consent for data processing or SMS communications; or

(d) any claim by a third party arising from your use of the Platform.

11. Suspension and Termination

11.1 Termination by merchant

You may close your Arova account at any time by contacting customerservice@arovadigital.com. Closure of a paid subscription does not entitle you to a refund of any fees already paid for the current billing period.

11.2 Suspension or termination by Arova

Arova reserves the right to suspend or terminate your account immediately and without prior notice if:

- i. You have materially breached these Terms and have not remedied the breach within 7 days of written notice from Arova.
- ii. Arova has credible evidence of fraudulent, deceptive, or unlawful activity on your account
- iii. Your use of the Platform poses a risk to the security, integrity, or reputation of Arova or other platform users.
- iv. You fail to pay subscription fees within 30 days of the due date.

Arova may report credible evidence of fraud or criminal activity to the relevant Ghanaian authorities including EOCO and the Ghana Police Service.

11.3 Effect of termination

Upon termination of a merchant account, the merchant's access to the Platform ceases immediately. Merchant and customer data will be retained for the periods set out in the Privacy Policy and then permanently deleted. Merchants are responsible for notifying their customers of the termination and the effect on their loyalty balance, with as much advance notice as reasonably practicable.

12. Changes to These Terms

Arova may update these Terms from time to time. Where changes are material, Arova will notify registered merchants by email at least 30 days before the revised Terms take effect. The current version of these Terms is always available at arovadigital.com/terms. Continued use of the Platform after the effective date of any revised Terms constitutes your acceptance of those Terms.

13. Governing Law and Dispute Resolution

- i. These Terms are governed by and shall be construed in accordance with the laws of the Republic of Ghana. Any dispute arising out of or in connection with these Terms shall be subject to the exclusive jurisdiction of the courts of Ghana.
- ii. Arova encourages merchants and customers to contact us in the first instance to resolve any dispute informally before initiating legal proceedings. Contact us at customerservice@arovadigital.com.

14. General

If any provision of these Terms is found to be unenforceable by a court of competent jurisdiction, that provision shall be severed and the remaining provisions shall continue in full force and effect. Arova's failure to enforce any provision of these Terms does not constitute a waiver of that provision. These Terms, together with the Privacy Policy and Merchant Service Agreement, constitute the entire agreement between Arova and the user with respect to the Platform.

15. Contact

For any questions, concerns, or complaints relating to these Terms:

Arova Digital Enterprise

Email: customerservice@arovadigital.com

Website: arovadigital.com

WhatsApp: +1 860 869 9899

Physical address:

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